

FEDERAL MARITIME COMMISSION

DOCKET NO. 17-09

FIAT CHRYSLER AUTOMOBILES NV, FCA US LLC and FCA Italy S.p.A.,

v.

**WALLENISUS WILHELMSSEN LOGISTICS AS, WALLENISUS WILHELMSSEN
LOGISTICS AMERICAS LLC, EUKOR CAR CARRIERS INC., NIPPON YUSEN
KABUSHIKI KAISHA, NYK LINE (NORTH AMERICA) INC., MITSUI O.S.K. LINES,
LTD., MOL (AMERICA) INC., KAWASAKI KISEN KAISHA, LTD., "K" LINE
AMERICA, INC., COMPAÑÍA SUD AMERICANA DE VAPORES, AND HOËGH
AUTOLINERS AS,**

**STIPULATION OF DISMISSAL OF NIPPON YUSEN KABUSHIKI KAISHA AND NYK
LINE (NORTH AMERICA) INC.**

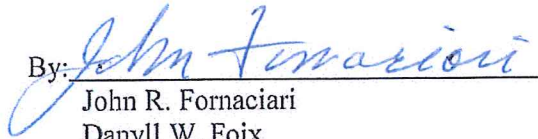
Pursuant to Commission Rule 69, 46 C.F.R. § 502.72(a)(2) and (a)(3), Complainants Fiat Chrysler Automobiles NV, FCA US LLC and FCA Italy S.p.A. ("Complainants") and Respondents Nippon Yusen Kabushiki Kaisha and NYK Line (North America) Inc. ("NYK Respondents") hereby agree and stipulate to the dismissal of the above-titled action against NYK Respondents, with Complainants and NYK Respondents each bearing their own costs.

Pursuant to Commission Rule 69, 46 C.F.R. § 502.72(a)(2), the parties certify through undersigned counsel that no settlement on the merits was reached between Complainants and NYK Respondents.

Pursuant to Commission Rule 69, 46 C.F.R. § 502.72(a)(3), the parties request that the Commission enter the attached Order that memorializes the stipulated dismissal.

Dated: March 20, 2019

By:



John R. Fornaciari

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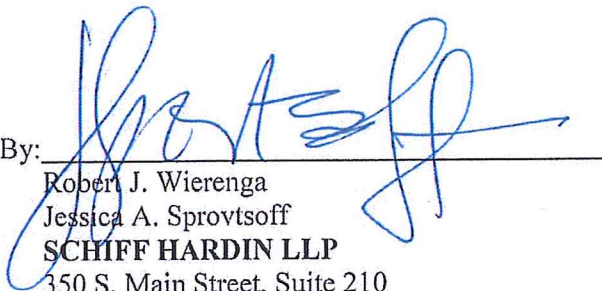
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*Counsel for Respondents Nippon Yusen
Kabushiki Kaisha and NYK Line North
America Inc.*

Dated: March 20, 2019

By:



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**WALLENISUS WILHELMSSEN LOGISTICS AS, WALLENISUS WILHELMSSEN
LOGISTICS AMERICAS LLC, EUKOR CAR CARRIERS INC., NIPPON YUSEN
KABUSHIKI KAISHA, NYK LINE (NORTH AMERICA) INC., MITSUI O.S.K. LINES,
LTD., MOL (AMERICA) INC., KAWASAKI KISEN KAISHA, LTD., "K" LINE
AMERICA, INC., COMPAÑIA SUD AMERICANA DE VAPORES, AND HOEGH
AUTOLINERS AS,**

**ORDER ENTERING STIPULATED DISMISSAL OF NIPPON YUSEN KABUSHIKI
KAISHA AND NYK LINE (NORTH AMERICA) INC.**

Pursuant to Commission Rule 69, 46 C.F.R. § 502.72(a)(2) and (a)(3), and upon the Stipulation of Dismissal submitted by Complainants Fiat Chrysler Automobiles NV, FCA US LLC and FCA Italy S.p.A. ("Complainants") and Respondents Nippon Yusen Kabushiki Kaisha and NYK Line (North America) Inc., ("NYK Respondents") it is hereby:

ORDERED that the above action by Complainants is DISMISSED as to the NYK Respondents, with each bearing their own costs.

March __, 2019

Erin M. Wirth
Administrative Law Judge

CERTIFICATE OF SERVICE

I certify that I have this day of March 21, 2019, caused the foregoing **STIPULATION OF DISMISSAL OF NIPPON YUSEN KABUSHIKI KAISHA AND NYK LINE (NORTH AMERICA) INC.** to be filed electronically with the Secretary of the Federal Maritime Commission and that electronic copies of the same were served by electronic mail upon all parties of record.

Dated: March 21, 2019

By: _____


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